

CHAPTER 21.

An Act to make provision for the appointment and functions of a Minister of Civil Aviation, and for purposes connected therewith. [25th April 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Appointment
and functions
of Minister
of Civil
Aviation.

1.—(1) It shall be lawful for His Majesty to appoint a Minister of Civil Aviation (in this Act referred to as "the Minister") who shall be charged with the general duty of organizing, carrying out and encouraging measures for the development of civil aviation, for the designing, development and production of civil aircraft, for the promotion of safety and efficiency in the use thereof, and for research into questions relating to air navigation :

Provided that this subsection shall not authorise the production of civil aircraft by the Minister.

(2) The acquisition and disposal of aircraft, aero-engines and aviation equipment in discharge of the Minister's said duty shall be subject to the approval of the Treasury.

Transfer to
Minister of
functions,
rights and
liabilities
relating to
civil aviation.

2.—(1) For the purpose of the transfer to the Minister of functions of the Secretary of State relating to civil aviation, the enactments specified in the Schedule to this Act shall have effect subject to the modifications set out in that Schedule ; and any other enactment relating to civil aviation, being an enactment contained in a local or private Act, shall have effect subject to such modifications as may be specified for the purpose aforesaid by Order in Council.

An Order in Council under this section may be varied or revoked by a subsequent Order in Council thereunder.

(2) Any property vested in, right enjoyed by, or liability incumbent on the Secretary of State immediately before the passing of this Act for the purposes of civil aviation shall on the passing thereof and without more vest in or devolve on the Minister.

(3) Any regulation, order, direction, appointment, determination, agreement, requirement, or representation made or other thing done or proceeding taken by, to or before the Secretary of State before the passing of this Act for the purposes of civil aviation and in force or having effect at the passing thereof shall after the passing thereof be treated as if it had been made, done or taken by, to or before the Minister and shall continue in force or have effect accordingly.

(4) A certificate by the Secretary of State and the Minister that any property right or liability vested, enjoyed or incurred in or by the Secretary of State was or was not vested, enjoyed or incurred for the purposes of civil aviation, or that anything made, done or taken by to or before the Secretary of State was or was not made, done or taken for those purposes, shall, in determining any question as to the effect of either of the two last foregoing subsections, be conclusive of the matters certified.

3. The Minister shall take the oath of allegiance and the official oath, and the Promissory Oaths Act, 1868, shall have effect as if the name of the Minister were included in the first Part of the Schedule to that Act.

Oath of
allegiance and
official oath.
31 & 32 Vict.
c. 72.

4.—(1) The Minister may appoint a Parliamentary Secretary, and such other secretaries, officers and servants as he may with the consent of the Treasury determine.

Appointment
of officers,
remuneration
and expenses.

(2) There shall be paid—

(a) to the Minister, an annual salary not exceeding five thousand pounds ;

(b) to any Parliamentary Secretary appointed by the Minister, and to any other secretaries, officers and servants appointed by the Minister, such salaries or remuneration as the Treasury may determine,

and for the purposes of section six of the Ministers of the Crown Act, 1937 (which makes provision against duplicate salaries) any salary payable under this subsection to the Minister or to any Parliamentary Secretary appointed by him shall be deemed to be a salary payable under that Act.

1 Edw. 8 &
1 Geo. 6. c. 38.

(3) The salary of the Minister and his expenses (including any salaries or remuneration payable under paragraph (b) of the last foregoing subsection) shall be defrayed out of moneys provided by Parliament.

5. A person holding office as Minister of Civil Aviation, or as Parliamentary Secretary to the Ministry, shall not thereby be rendered incapable of being elected as a member of the Commons of House of Parliament, or of sitting or voting as such a member.

Capacity to
sit in House
of Commons.

6.—(1) The Minister shall for all purposes be a corporation sole, and shall have an official seal, which shall be authenticated by the signature of the Minister or of a secretary to the Ministry or of any person authorised by the Minister to act in that behalf.

Seal, style and
acts of
Minister.

(2) The seal of the Minister shall be officially and judicially noticed, and every document purporting to be an instrument made or issued by the Minister and to be sealed with the seal of the Minister authenticated in the manner provided by this section, or to be signed by a secretary to the Ministry or any person

authorised as aforesaid, shall be received in evidence and be deemed to be so made or issued without further proof, unless the contrary is shown.

(3) A certificate signed by the Minister that any instrument purporting to be made or issued by him was so made or issued shall be conclusive evidence of that fact.

31 & 32 Vict.
c. 37.

(4) The Documentary Evidence Act, 1868, shall apply to the Minister as if his name were included in the first column of the Schedule to that Act, and as if he or a secretary to the Ministry or any person authorised by him to act on his behalf were mentioned in the second column of that Schedule, and as if the regulations referred to in that Act included any document issued by the Minister.

Short title and
interpretation.

7.—(1) This Act may be cited as the Ministry of Civil Aviation Act, 1945.

(2) References in this Act to any enactment shall be construed as references thereto as amended by or under any other enactment.

Sections 2, 6.

SCHEDULE.

TRANSFER OF FUNCTIONS OF SECRETARY OF STATE.

10 & 11 Geo. 5.
c. 80.

Air Navigation Act, 1920.

In section five (which provides for contributions towards the international commission for air navigation) and in section eight (which authorises the establishment of aerodromes) for references to the Secretary of State there shall be substituted references to the Minister.

Regulations made under section twelve providing for the investigation of accidents shall, if they relate to civil aviation only, be made by the Minister, and if they relate to civil aviation and other matters, be made by the Secretary of State and the Minister acting jointly.

In section twelve A (which authorises the detention of aircraft) for the words "or the Secretary of State" there shall be substituted the words "or the Secretary of State or Minister of Civil Aviation".

In section thirteen (which relates to the infringement of patents) for the references to the Secretary of State there shall be substituted references to the Minister.

The powers of acquiring, managing and disposing of land conferred on the Secretary of State by section fifteen shall be transferred to the Minister.

In section seventeen (which contains provisions as to Orders in Council) the references to the Secretary of State shall be construed as including references to the Minister.

Great Western Railway (Air Transport) Act, 1929, London & North 19 & 20 Geo. 5.
Eastern Railway (Air Transport) Act, 1929, London Midland & Scottish c. liv, c. lv,
Railway (Air Transport) Act, 1929 and Southern Railway (Air Transport) c. lvi, c. lvii.
Act, 1929.

References to the Secretary of State (including references which by virtue of subsection (2) of section twenty-three of the Air Navigation Act, 1936, are to be construed as references to the Secretary of State) shall be construed as references to the Minister.

Air Navigation Act, 1936.

26 Geo. 5 &
 1 Edw. 8. c. 44.

In section two (which authorises the delegation of certain functions to a representative body) for references to the Secretary of State there shall be substituted references to the Minister.

In section three (which provides for the application to seaplanes of regulations for preventing collisions at sea) for the words "the Secretary of State", in each place where they occur except at the end of paragraph (c) of subsection (4), there shall be substituted the words "the Secretary of State and the Minister of Civil Aviation", and at the end of the said paragraph (c) for the words "the Secretary of State" there shall be substituted the words "the Secretary of State or the Minister of Civil Aviation".

In subsection (3) of section five (which requires the Secretary of State to lay before Parliament the draft of any Order relating to the licensing of air transport and commercial flying), in section nine (which empowers local authorities to acquire land compulsorily for aerodrome purposes), in section ten (which relates to dealing with land held by local authorities for aerodrome purposes), and in section twelve (which authorises local authorities to carry on business in connection with aerodromes provided by them) for references to the Secretary of State there shall be substituted references to the Minister.

In section fourteen (which authorises the imposition of requirements as to marking obstructions near aerodromes) for the words "the Secretary of State", wherever they occur except in subsection (8), there shall be substituted the words "the Minister of Civil Aviation", and in the said subsection (8) for the words "the Secretary of State" there shall be substituted the words "the Secretary of State or the Minister of Civil Aviation".

In section eighteen (which relates to policies of insurance) and section twenty-two (which provides for the commencement of Part III) for references to the Secretary of State there shall be substituted references to the Minister.

Subsection (1) of section twenty-six (which provides for the application in relation to the Secretary of State of certain enactments) shall apply to the Minister as it applies to the Secretary of State.

In section twenty-seven (which relates to wages and conditions of employment of persons employed in air transport) in subsection (1) for the first reference to the Secretary of State there shall be substituted a reference to the Minister, and at the end of that subsection the words "by the Secretary of State" shall be omitted.

In section thirty-two (which provides for application to Scotland) in paragraph (3) and in paragraph (6) for references to the Secretary of State there shall be substituted references to the Minister.

In the First Schedule (which contains provisions with respect to compulsory purchase orders) for references to the Secretary of State there shall be substituted references to the Minister.

In the Second Schedule (which relates to limits of liability in respect of loss or damage) for the reference to the Secretary of State there shall be substituted a reference to the Minister.

In the Third Schedule (which contains provisions as to policies of insurance) in sub-paragraph (2) of paragraph 2 for the references to the Secretary of State there shall be substituted references to the Minister, and for the words "the Secretary of the Air Ministry, London" there shall be substituted the words "the Secretary of the Ministry of Civil Aviation, London", and in paragraph 8 for references to the Secretary of State there shall be substituted references to the Minister.

26 Geo. 5 &
1 Edw. 8. c. 49.

Public Health Act, 1936.

In section one hundred and forty-three (which empowers the Minister of Health to make regulations, after consultation with the Secretary of State in the case of regulations relating to aircraft, for preventing danger from infectious diseases) for references to the Secretary of State there shall be substituted references to the Minister.

1 & 2 Geo. 6.
c. 33.

Air Navigation (Financial Provisions) Act, 1938.

In section two (which relates to the remuneration and expenses of air transport licensing authorities) for references to the Secretary of State there shall be substituted references to the Minister.

2 & 3 Geo. 6.
c. 61.

British Overseas Airways Act, 1939, and British Overseas Airways Corporation (Temporary Provisions) Order, 1943.

References to the Secretary of State shall, except in section twenty-eight (which authorises the Secretary of State to provide facilities for aircraft of the British Overseas Airways Corporation), section thirty-two (which confers on the Secretary of State certain powers in times of emergency) and the Third Schedule (which sets out certain agreements entered into before the passing of the Act), be construed as references to the Minister.

In the said section twenty-eight references to the Secretary of State shall be construed as including references to the Minister.

In the said section thirty-two for the words from the beginning of subsection (1) to the word "may" there shall be substituted the words "In time of war whether actual or imminent, or of great national emergency, the Minister of Civil Aviation may by order", and for the last two references to the Secretary of State there shall be substituted references to the Minister; and—

- (a) the provisions of the Air Navigation Act, 1920, shall apply to an order made by the Minister by virtue of this provision in like manner as apart from this provision they would have applied to an order made by the Secretary of State by virtue of the said section thirty-two, but with the substitution for references to the Secretary of State of references to the Minister;

- (b) any order made or direction given by the Secretary of State under the said section thirty-two and in force at the passing of this Act shall be deemed to have been made or given by the Minister and shall continue in force accordingly.

Ships and Aircraft (Transfer Restriction) Act, 1939.

2 & 3 Geo 6.
c. 70.

In subsection (1) of section three, subsection (4) of section six, section seven, subsection (4) of section eight and section nine for the references to the Secretary of State there shall be substituted references to the Minister, and any arrangements under the said section nine made by the Secretary of State and in force at the passing of this Act shall be deemed to have been made by the Minister and shall continue in force accordingly.

CHAPTER 22.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force.

[25th April 1945.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of such number as His Majesty may deem necessary :

And whereas under the Air Force (Constitution) Act, 1917, 7 & 8 Geo. 5 His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of such number as His Majesty may deem necessary :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :